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Supreme Court, U.S.

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No. 95-507

In The
Supreme Court of the United States
October Term, 1995

BRITTNEY KAYE SETTLE,

Petitioner,

v.

DICKSON COUNTY
SCHOOL BOARD, *et al.*,

Respondents.

On Petition For A Writ Of Certiorari
To The United States Court Of Appeals
For The Sixth Circuit

PETITIONER'S REPLY BRIEF

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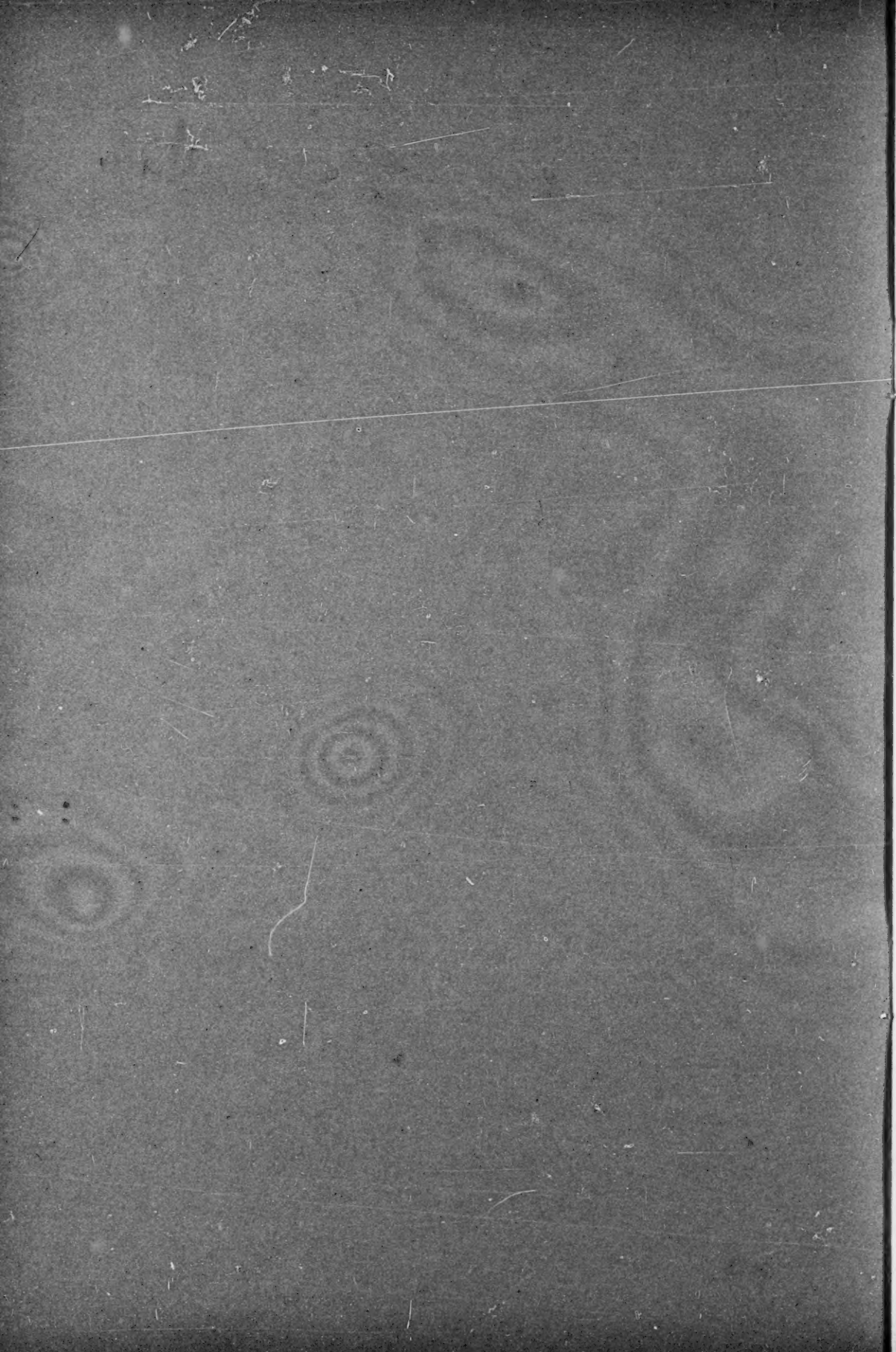
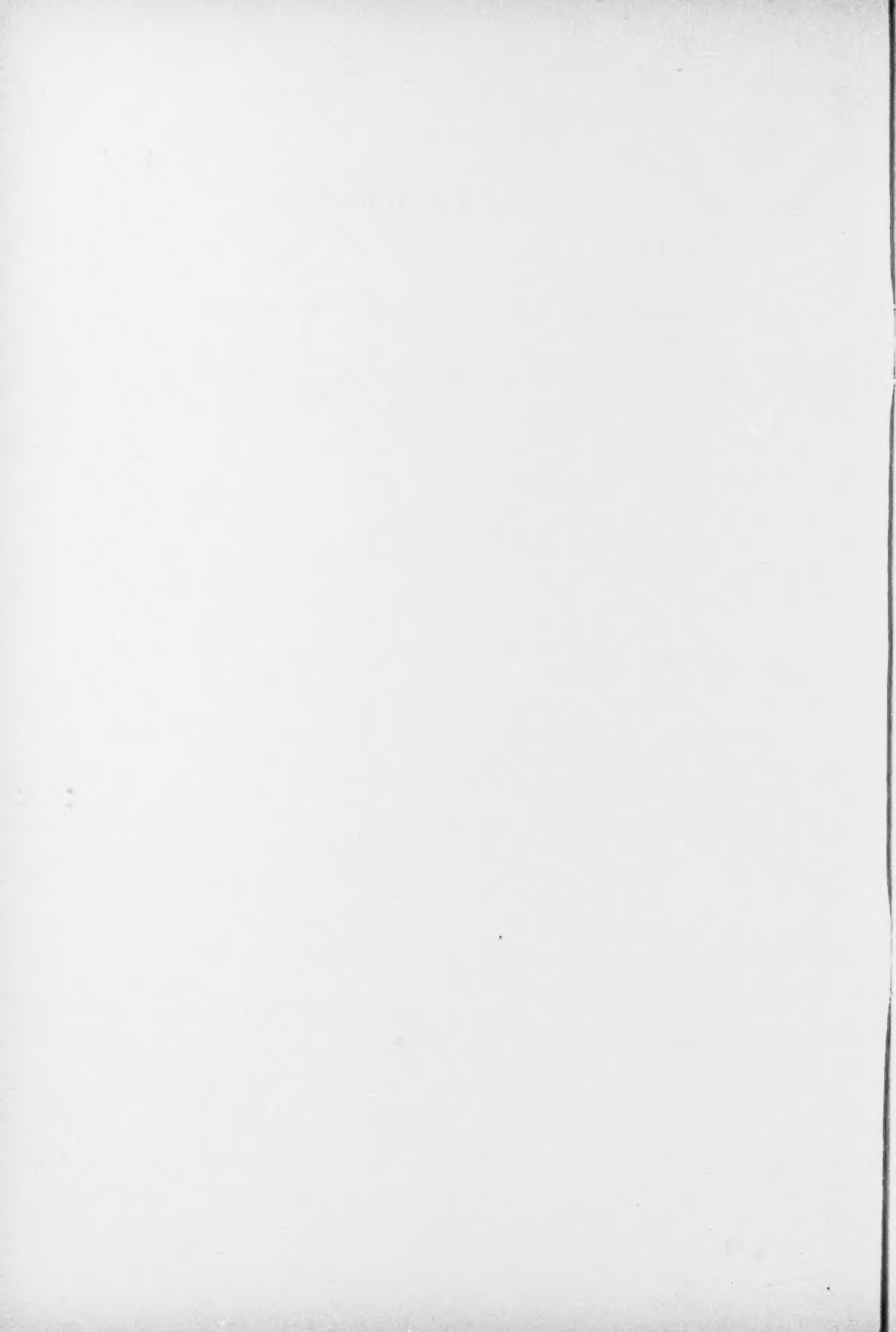


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PETITIONER'S REPLY BRIEF

The School District's Brief in Opposition makes a powerful case for *granting* certiorari: The School District does not deny that the decision below conflicts in principle with decisions of this Court forbidding viewpoint-based speech restrictions, even within areas of unprotected expression (*see* Pet. 12-14); nor does the School District meaningfully contest that the decision below directly conflicts with the decisions of at least three other circuits invalidating viewpoint-based restrictions on expression in public schools, including in curricular settings (*see* Pet. 14-19); nor does the School District deny that the decision below directly conflicts with the decisions of at least three circuits concerning the propriety of granting summary judgment on disputed issues of motivation, pretext, or official intention (*see* Pet. 25-28). In short, nothing in the School District's Brief in Opposition challenges the existence, importance, or recurring nature of the important constitutional conflicts created by the decision below.

Moreover, the Brief in Opposition itself is a compelling illustration of the confusion of local school districts over the permissibility of student expression of personal religious viewpoints in individual written work and classroom discussions. The Brief in Opposition takes the position (as did the court below) that school officials *need never permit the expression of student religious viewpoints* in any academic context, even where students are permitted

to express other personal viewpoints or interests.¹ As we showed in the Petition, other school districts (and some lower courts) have taken the same position, and the recurring nature of the problem has excited the concern of both Congress and the President. Pet. 22-25. As the School District's position illustrates, this Court's guidance is urgently needed.

1. The first question presented by the Petition is whether public school officials may punish or penalize student expression in individual written work or other curricular contexts on the basis of the religious viewpoint expressed by the student, where students are otherwise permitted to express personal viewpoints or discuss topics of personal interest. The School District argues (i) that this question is controlled by *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260 (1988); and (ii) that this Court's decisions prohibiting viewpoint-based censorship of expression are "inapposite" to student expression in any public school curricular context, on the theory that *Kuhlmeier* gives school officials complete discretion in this regard. Br. in Opp. 10, 11-14. The School District does not deny that it censored Brittney Settle's choice of research topics on the basis of its supposed Christian religious viewpoint. Nor does it deny that its actions discriminated

¹ The teacher in this case initially took the position that student religious viewpoints *must* be censored (Pet. App. 4) – a position clearly contrary to settled law and from which the School District has retreated. Nonetheless, the School District continues to maintain that student religious viewpoints *may* be censored, and its position appears to be influenced by the same attitude that religious viewpoints present a special justification for censorship.

among religious viewpoints and perspectives that students could address in individual research compositions. Nor does it deny that viewpoint-based censorship is generally impermissible in other contexts. Rather, it simply asserts that this Court's cases forbidding viewpoint-based censorship are "inapposite" in public school instructional contexts, on the theory that such censorship is authorized by *Kuhlmeier*. Put concretely, the School District's position is that school officials may prohibit or punish the expression of particular religious viewpoints by public school students in any curricular context.

This, of course, is precisely the point of our Petition and the reason why this case is certworthy. The position of the School District here is not uncommon, Pet. 21 n.11 (citing three similar reported cases), but it conflicts with decisions of this Court forbidding viewpoint discrimination in every other First Amendment context (Pet. 12-14) and with the decisions of several other circuits involving analogous facts (Pet. 14-19). Moreover, the decision below, by permitting viewpoint-based censorship, gives student expression in a curricular context *less* constitutional protection than is afforded *unprotected* categories of expression like obscenity and fighting words, a result seemingly in conflict with this Court's decisions (including *Kuhlmeier* itself) holding student expression entitled to constitutional protection. Pet. 19-22.

To its credit, the School District does not try to evade these conflicts, but merely asserts that the decision of the Sixth Circuit is correct on the merits. The issue is thus squarely joined: Petitioner Brittney Settle contends that school officials may limit the subject matter of student expression in any educationally reasonable manner, but

may not prohibit or punish the expression of particular student viewpoints within the subject matter areas that the school has marked out as appropriate subjects of discussion, simply because that viewpoint is or may be religious. Respondent School District contends that school officials may forbid student expression of religious viewpoints concerning permitted topics or may forbid a student from discussing an otherwise permitted topic when a student is perceived to have chosen that topic because of her personal religious views. This case presents an appropriate occasion for review of this important, recurring issue.²

2. Respondents do not offer any argument in opposition to certiorari on the second question presented by the Petition: whether disputed issues of motivation, intent, or pretext may be resolved on summary judgment, consistent with Fed. R. Civ. P. 56. As we showed in the Petition, this case presents triable issues of fact concerning the "mixed motives" of respondents. Pet. 25-29. If it is impermissible to censor a student research paper topic on the basis of its presumed religious viewpoint, then the

² Since the filing of the Petition for Certiorari, the Committee on the Judiciary of the House of Representatives has held additional hearings on the question of whether a constitutional amendment is necessary to remedy this situation, and the Senate Judiciary Committee has held three different sets of hearings addressed to the same matter. On both October 20, 1995 and October 25, 1995, this specific case was once again the subject of discussion at hearings before the Senate Judiciary Committee. Hearings on Religious Liberty, Committee on the Judiciary, United States Senate, Oct. 20, 1995 (testimony of several witnesses); *id.* Oct. 25, 1995 (testimony of Assistant Attorney General Dellinger). See also Pet. 22-23.

School District must show that the teacher would have refused to let Brittney Settle write on this topic even absent the constitutionally impermissible reason. *Mt. Healthy City School District v. Doyle*, 429 U.S. 274 (1977). There has been no trial on that question, and the facts are disputed. The record, construed most favorably to Brittney Settle, certainly supports the inference that the teacher would not have censored Brittney Settle's paper but for its presumed religious viewpoint. Pet. 26.

We also contend that the additional reasons offered to justify the teacher's actions are pretextual. The Brief in Opposition merely repeats the School District's assertion of these other reasons (and suggests a few new ones),³

³ The School District tries to shift one of the teacher's most obviously pretextual justifications – that the assignment required four sources and that “ ‘all of the sources that you [are] going to find documenting the life of Jesus Christ derive from one source, the Bible’ ” (Pet. App. 4-5) – into a defense that the teacher thought the school library's resources too limited in sources for Brittney Settle's topic. Br. in Opp. 12, 14. The record is clear, however, that students were not limited to sources available in the school library. The teacher testified as follows: “Our library is small, and so one of the things that I'm aware of, it's hard to find information. And they were not restricted, but they had to be willing to produce any materials that were not in the library if I wanted it [sic] see them.” J.A. 38.

The School District's Brief also acknowledges that the teacher would have permitted Brittney to change her topic even after the outline deadline and even to a topic with some religious aspects, so long as the paper did not involve Jesus Christ in any way. Br. in Opp. 5. This concession, of course, refutes the School District's subsequent claim that the teacher's action was somehow justified by “the blatant refusal by the Petitioner to conform to the procedural deadlines.” Br. in Opp. 12. The teacher was willing to waive the deadline, except for a paper expressing a particular religious viewpoint.

but does not address the relevant question of whether questions of pretext may be resolved on motion for summary judgment. The issue is not so much whether these reasons *would have been* a legitimate basis for refusing permission to write on the chosen topic, but whether they *in fact were* the teacher's reasons in this case. That too is a question of fact on which there has been no trial and on which, as we showed in the Petition, there remain genuine issues of material fact. Pet. 26-27 n.14.

As we showed in the Petition, the approach of the Sixth Circuit in upholding summary judgment on issues of motivation and pretext is directly contrary to the decisions of the Second, Eighth, and Eleventh Circuits. Pet. 25-28. The School District's Brief in Opposition does not dispute the existence of this conflict. This issue merits the Court's attention in its own right, to resolve the conflict among the circuits on this recurring point of law.

3. Respondents end their Brief in Opposition with a series of rhetorical questions. Br. in Opp. 14. We anticipated and answered these questions in the Petition (Pet. 11): This case does not challenge the authority of teachers to set deadlines, impose subject matter limitations on papers or classroom discussion, control the manner and style of student classroom expression, and critique quality of research and writing. All of respondents' questions are, on the facts and procedural posture of this case, quite beside the point. The question framed by the facts of this case is whether a school, having made the instructional choice to permit students to write research compositions on topics of the students' own choice, may punish or penalize a student's choice of a topic because of the religious viewpoint chosen or expressed by the student.

On that point, Brittney Settle and the Dickson School District have diametrically opposed answers. This case squarely presents that important and unresolved question.

The School District's position is, we submit, symptomatic of a widespread misunderstanding about the fundamental principles of the First Amendment. This case provides an ideal opportunity to correct that misunderstanding.

CONCLUSION

For these reasons, and those stated in the Petition, this Court should grant the Writ of Certiorari.

Respectfully submitted,

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